

EXECUTIVE SUMMARY

DAN REGARD



– FACT CRASHING™ –

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Twenty years ago, I was fortunate enough to be invited to join the Sedona Conference where I worked with a team of forward-thinking attorneys, judges, and consultants to draft and publish the original Sedona Principles.

These ideas and concepts helped usher in a new generation of litigants to the world of Electronically Stored Information (ESI) and e-discovery.

E-discovery was not new, but it was limited to a few cases and a few practitioners. With the release of the Sedona Principles, however, a body of knowledge, a list of guidelines, and a basis for best practices was disseminated and made available to everyone. And it gave everyone a way to deal with the elephant in the room --- the emergence and explosion of e-mail as litigation evidence.

Yet, during those twenty years and, indeed, for a solid decade prior to that seminal event, I was already working with litigants to deal with a different type of ESI --- databases. And over the past 30 years, I have witnessed the increased frequency of databases being relevant to litigation, and an increase in the number of databases per case. And, eventually, have seen cases, large and small, where the primary evidence considered for merits and damages was databases.

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This was very different from e-mail. In fact, we call those "zero-email" cases. Clearly something was happening. And although it has taken decades to ripen, in the eyes of the legal world, 30 years is a blink of an eye. But in the eyes of the technological world, 30 years is an eternity.

BLINK OF AN EYE TO THE LAW,
BUT AN ETERNITY TO TECHNOLOGY.

As we began helping more and more parties deal with litigation in the role of consultant, advisor, expert witness, data neutral, or special master, we observed that the impact of databases was huge, but the gap of knowledge was vast. People began encouraging me to write out what I had learned over the past 30-years. This book has been a work-in-progress for over 5 years. But it also been a work-applied on case-loads during that same time.

I have tried to make the techniques technologically agnostic. And I believe that these principles and guidelines would have been equally applicable 30 years ago as they are today, and I hope that they will provide value for years to come. But I recognize that technology is constantly changing and that we are only at the beginning of understanding how profound an effect technology will have on society, much less the practice of law. Therefore, this book will always be a work-in-progress.

I'll close by saying that although I have the privilege of writing this, it is truly the work-product of hundreds of colleagues, peers, clients, judges, and opposing parties who have taught, shaped, and challenged these ideas and allowed them to be tested and proven.

BUT WHAT IS FACT CRASHING?

Fact Crashing is a portmanteau, a new word made from two pre-existing words. Fact being any digital truth recorded by the systems that permeate our digital lives, and Crashing, a construction project management concept used to describe the acceleration of one phase of a project to the benefit of the entire project.

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Fact-Crashing /fakt-'krashing/ ***noun*** – a digital thing that is known or proven to be true. ***verb***- adding project resources to critical path task(s). ***verb***- the acceleration of dispute resolution through the prioritization of data-based evidence.

In the case of Fact Crashing, we have found that cases that prioritize dealing with structured data can provide a significant procedural, tactical, and even strategic advantage – including the repeated experience of speeding up dispute resolution by providing both parties with quicker access to mutually agreeable (or mutually obvious) facts. In the case of Fact Crashing, we have found cases that prioritize structured data can provide a significant procedural, tactical, and even strategic advantage.

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WHY DOES THIS HELP?

It circumvents two of the biggest barriers to dispute resolution: a historical sparsity of facts, and a modern abundance of emails and other unstructured digital documents.

A sparsity of evidentiary facts, normal in most litigation, is a challenge. This necessarily leads to depositions, motions, and trial, all with the end goal of gathering supporting evidence for the judge or jury to use in their role as the "trier of fact" to allow them to determine ultimate facts. This evidence, often incomplete, leads to juries using deductions, abductions, and inferences to fill in gaps.

However, when there is an abundance of evidentiary facts, the path to resolution can accelerate, shorten, or sometimes skip trial altogether. This actually happens when we focus on ambient, contextual, and transactional data.

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When there is so much evidentiary data, the parties themselves can see the writing on the wall and agree to the ultimate facts.

At the same time, the current abundance of emails and unstructured documents is a challenge. This leads to the high cost of document review, classification, privilege review, and production. While the volume of written content is dramatically increasing on a year-over-year basis, consider what would happen if alternative sources of facts could reduce, or even eliminate, the need for the review of documents.

IF YOU HAD DONE THIS FIRST, YOU MIGHT HAVE BEEN FINISHED BY NOW.

This trade-off happens when we focus on contextual and transactional data. That is the purpose of Fact Crashing – focusing on ambient, contextual, and transactional data earlier and more broadly.

If all of this were true, and if this data can reduce costs and accelerate resolution, why don't we do it more often? Because it's new. It's different. It's confusing. It's technical.

It is human nature to stick with the methods and processes which are most familiar to us, even when those methods and processes will not provide an optimal solution. This is sometimes referred to as the streetlight effect.

It may also be because the legal industry lacks the vocabulary, skills, tools, or guidelines to deal with it. For this reason, we've worked for the past few years to develop these nine principles of Fact Crashing.

These principles provide the missing vocabulary, tools, and guidelines. They summarize decades of experience and learning on how to identify, qualify, prioritize, and apply structured data to the benefit of resolving disputes, predominately in a legal setting.

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THE 9 PRINCIPLES OF FACT CRASHING

PRINCIPLE 1: **Data Is Evidence and Discoverable**

PRINCIPLE 2: **Data Should Be Addressed Early**

PRINCIPLE 3: **Frame Case Issues As Data-Centric Inquiries**

PRINCIPLE 4: **Identify, Qualify, and Prioritize Data as Source**

PRINCIPLE 5: **Data Is Subject to Preservation and Protection Obligations**

PRINCIPLE 6: **Data Reliability Starts With Proper Collection**

PRINCIPLE 7: **Data Understanding is Required for Proper Analysis**

PRINCIPLE 8: **Use Data to Shape Other Discovery**

PRINCIPLE 9: **Use Data to Work Toward Early Resolution**

The Principles of Fact Crashing provide the necessary tools to change the way we litigate. They provide words and vocabulary, that outline the tools we have used successfully for years to guide parties to closure through the thoughtful application of data.

To learn more about Fact Crashing, download the complete eBook here.

I hope you find, as have so many of our clients, that this provides a unique opportunity to treat traditional disputes as business problems locked in the courts because of a scarcity of information, and Fact Crashing as a way to unlock that log jam.

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ABOUT THE AUTHOR



It takes years to become an overnight success.

For the past 25 years, Dan Regard has stood as a visionary and vanguard for domestic and global issues revolving around the use of data analytics.

His experience as a consultant and respected subject matter expert continues to make him a sought-after speaker, educator, and clinician, whether it be for legal retreats, judicial training events, or law firm client conferences.

A programmer and an attorney by training, Dan has conducted system investigations, created data collections, and managed discovery on over a thousand matters – with national and international experience advising on eDiscovery, forensics, structured data, and information management issues.

Dan has received a Band 1 ranking from CHAMBERS AND PARTNERS for 5 consecutive years. In addition, Dan plays an active leadership role in the Sedona Conference, the Electronic Discovery Institute (EDI), and the Georgetown Global Advanced Electronic Discovery Institute (AEDI).

ACKNOWLEDGEMENTS

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ABOUT IDS

iDS provides consultative data solutions to corporations and law firms around the world, giving them a decisive advantage against the competition – both in and out of the courtroom.

With decades of experience, our subject matter experts and data strategists help you tap into data – giving you control of the narrative for the best possible outcomes. This starts with an understanding of your needs and objectives through our STEPS™ framework – providing valuable insight into the unknown, the unseen, and the undiscovered. Having this insight gives you the opportunity to make informed decisions that lead to transformative outcomes for both you and your client.

At iDS we work with you to find solutions to your data problems – helping to ensure your data can be leveraged as an asset and not a liability.

To learn more about iDS, Fact Crashing, or to speak with one of our experts, call, email, or visit iDSinc.com.

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